W012297-030826 - California Public Records Request

Message History (7)

On 4/22/2026 12:21:02 PM, Brian C wrote:

Captain Maravillas,

Thank you for the rolling release on 4/22. The files are interesting reads and informative in their own right -- but I want to flag that the batch produced to date does not appear to reach the records described in W012297-030826, and use this message to focus the request on what I think is the core question.

The emails produced are Flock platform notifications about portal-mediated sharing between Flock customers -- for example:

- "Home Depot - #0654 (CA) shared Flock cameras with you!" (an outside org sharing its cameras with SMPD)
- "Camera Access Request from US Postal Inspection Service" (an outside agency requesting access to SMPD's cameras, routed through the portal for SMPD to accept or reject)
- "Action Requested: Pending Flock Camera Share Requests" (digest reminders to approve pending portal requests)

In each of the responses produced, SMPD (or the other Flock customer) remains the footage owner and controls whether access is granted through the portal UI. That is normal portal activity, not a disclosure under Section 5.3 of San Mateo's contract with Flock.

Section 5.3 addresses a different situation: Flock Group Inc., as vendor, independently accessing, using, preserving, or disclosing SMPD Footage to law enforcement authorities, government officials, or third parties based on Flock's own "good faith belief" that such action is reasonably necessary -- without SMPD's approval or involvement. This concern is not hypothetical. Reporting over the past year has documented instances of Flock making customer ALPR data available to federal agencies, including ICE, outside of any explicit sharing agreement executed by the customer agency. Section 5.3 is the contractual provision that would authorize that kind of disclosure using SMPD-owned Footage, and such disclosures would not surface in the portal sharing workflow or in the monthly sharing-configuration audit memos.

With that in mind, I'd like to ask for a direct response to Item 6 of the original request:

"Any policy, procedure, or system documentation describing how SMPD monitors or tracks vendor-initiated disclosures under Section 5.3."

Specifically -- does any record exist, of any kind, that describes a mechanism by which the City would become aware of a Section 5.3 disclosure? That could include contract provisions, addenda, policies, procedures, system configurations, standing requests to Flock, transparency reporting cadences, or internal procedures for reviewing vendor-initiated disclosures. If the answer is "no responsive records," a direct statement to that effect -- in response to Item 6 specifically -- would resolve this item. If records do exist, I would ask that they be produced.

The remaining items (1, 2, 3, 5) likely turn on the answer to Item 6: if no mechanism exists by which the City learns of Section 5.3 disclosures, then the absence of notifications, tracking records, and accounting logs is the expected result.

Thanks,
Brian

On 4/22/2026 11:13:12 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012297-030826
Body:
RE: PUBLIC RECORDS REQUEST of March 08, 2026, **Reference # W012297-030826**

Dear Brian C,

The City received the following records request from you on March 08, 2026.

Pursuant to the California Public Records Act (Government Code § 7920 et seq.), I am requesting the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested:

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.
2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.
3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.
4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 — which applies to "Footage" as defined in the contract, including but not limited to ALPR information — is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.
5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Also, any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
6. Any policy, procedure, or system documentation describing how SMPD monitors or tracks vendor-initiated disclosures under Section 5.3.

I request responsive records in electronic format where available. If no records are located for any individual item, please respond to that item separately and continue processing the remaining items. Please contact me if clarification would help narrow or expedite this request.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to

complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 5/6/26.

If you have any questions, please contact me using the below contact information.

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Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/8/2026 5:06:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012297-030826
Body:
RE: PUBLIC RECORDS REQUEST of March 08, 2026, **Reference # W012297-030826**

Dear Brian C,
As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 4/22/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 3/26/2026 8:12:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012297-030826
Body:
RE: PUBLIC RECORDS REQUEST of March 08, 2026, **Reference # W012297-030826**

Dear Brian C,

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 4/11/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 3/13/2026 9:57:07 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012297-030826
Body:
RE: PUBLIC RECORDS REQUEST of March 08, 2026, **Reference # W012297-030826.**

Dear Brian C,

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Pursuant to the California Public Records Act (Government Code § 7920 et seq.), I am requesting the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested:

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD

Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.
2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.
3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.
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6. Any policy, procedure, or system documentation describing how SMPD monitors or tracks vendor-initiated disclosures under Section 5.3.

I request responsive records in electronic format where available. If no records are located for any individual item, please respond to that item separately and continue processing the remaining items. Please contact me if clarification would help narrow or expedite this request.

We are reaching out to inform you that a legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that a portion of the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

Your request for documents related to legal review has been denied. California Government Code section7927.705 exempts records protected by privileges under the Evidence Code.This includes attorney-client privileged communications pursuant to CaliforniaEvidence Code section 954.

The remainder of your request requires a lengthy email query and will be released on a rolling basis; we will advise when the response is considered complete.

If you have any questions, please reply to this message.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 3/8/2026 1:14:00 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 3/8/2026 and given the reference number **W012297-030826** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Government Code § 7920 et seq.), I am requesting the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.**

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested:

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.
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5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Also, any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.
6. Any policy, procedure, or system documentation describing how SMPD monitors or tracks vendor-

initiated disclosures under Section 5.3.

I request responsive records in electronic format where available. If no records are located for any individual item, please respond to that item separately and continue processing the remaining items. Please contact me if clarification would help narrow or expedite this request.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 3/8/2026 1:14:00 AM, Brian C wrote:

Request Created on Public Portal